

HEALTH AND SAFETY REPRESENTATIVE
NQF LEVEL 2
CREDITS 3
US ID 259622
LEARNER GUIDE

Learner's class room rules

Dos	Don'ts
 Participate actively	 NO answering calls in class
Ask Questions for clarity	No eating or Drinking in class
Give constructive criticism	No discrimination is allowed in class
Maintain confidentiality	Avoid unnecessary movement in class
Have a pen and pencil at hand	Unnecessary noise is prohibited
Use the note pad provided for notes	Do not steal other fellows equipment
Keep your valuables safe	

Learner's materials

Make sure you have the following before the commencement of any lesson:

- Learner's guide
- Pens and pencils
- Highlighter
- Ruler
- Note pad

COURSE INDEX

1. INTRODUCTION TO HEALTH AND SAFETY
2. LEGISLATIVE HISTORY
3. THE CONSTITUTION
4. THE HEALTH AND SAFETY REPRESENTATIVE
5. HEALTH AND SAFETY INSPECTIONS
6. INCIDENT AND INVESTIGATION
7. HEALTH AND SAFETY COMMITTEE MEETING
8. ADDITIONAL INFORMATION

Please ensure that all activities are done as it forms part of your assessment.....

1. INTRODUCTION TO HEALTH AND SAFETY

Welcome to the world of health and safety. We trust that the knowledge you gain today will assist you in creating a healthy, safe and prepared working environment for all. We intend to provide you with a much better and clear understanding of the theoretical and practical principles regarding the health and safety representatives' role, in order for you to participate in and implement effective H&S measures.

This course is a starting point and to encourage you to impart your knowledge to your co-workers.

Health and Safety Act -

Occupational Health and Safety Act - No 85 of 1993:

"To provide for health and safety of persons at work and for the health and safety in connection with the use of plant and machinery; the protection of persons at work against hazards to health and safety arising out of or in connection with the activities of persons at work; to establish an advisory council for occupational health and safety; to provide for matters connected therewith.

2. LEGISLATIVE HISTORY

Health and Safety in the workplace was first legislated for by way of the "Factory Act", which was extremely prescriptive in its framework. The onus of ensuring compliance rested squarely on the shoulders of the "factory engineer".

However penalties were ineffective and the overall implementation was badly enforced. There was a clear need for a more effective mechanism to address the issues of safety in the workplace.

An improved act came in the form of 'MOSACT'. The burden of accountability was now shifted from the factory engineer to the Chief Executive Officer (CEO), and the penalties became more meaningful. Although the essence of accountability remains with the CEO, the net is now spread wider throughout the entire spectrum of the workforce, resulting in both employer and employee responsibility to health and safety.

Government has been in the process of releasing new safety, health and environmental legislation, namely the National Occupational Health and Safety Act (NOSH Act), which focuses on the national standardization and is benchmarked against international standards.

Penalties may be increased to R1 million or 10 year's imprisonment for acts of non-compliance with the legislation.

The Preceding Acts were-

- FACTORY ACT 22 OF 1941
- MACHINERY AND OCCUPATIONAL SAFETY ACT 6 OF 1983
- MACHINERY AND OCCUPATIONAL SAFETY ACT 97 OF 1991
- OCCUPATIONAL HEALTH AND SAFETY ACT 83 OF 1993

3. THE CONSTITUTION

The Constitution of South Africa is the supreme law of our country and it "overrides" all other laws. It entrenches the right of its people to a safe and healthy working environment.

Chapter 2-bill of rights (section 24) Environment –Everyone has a right-

- a) to an environment that is not harmful to their health and well-being; and
- b) to have the environment protected, for the benefit of present and future generations, through reasonable legislative and other measures that-
 - prevent pollution and ecological degradation;
 - promote conservation; and
 - Secure ecologically sustainable development and use of natural resources while promoting justifiable economic and social development.

"health and safety is therefore both a legal and commitment and a constitutional right"

Extract from the Act...

14. General duties of employees at work

Every employee shall at work -

- (a) *take reasonable care for the health and safety of **himself** and of other persons who may be affected by his acts or omissions;*
- (b) *as regards any duty or requirement imposed on his employer or any other person by this Act, **co-operate** with such employer or person to enable that duty or requirement to be performed or complied with;*
- (c) *carry out any lawful order given to him and **obey** the health and safety rules and procedures laid down by his employer or by anyone authorized thereto by his employer, in the interest of health or safety;*
- (d) *if any situation which is unsafe or unhealthy comes to his attention, as soon as practicable **report** such situation to his employer or to the health and safety representative for his workplace or section thereof, as the case may be, who shall report it to the employer; and*
 - (e) *if he is involved in any incident which may affect his health or which has caused an injury to himself, **report** such incident to his employer or to anyone authorized thereto by the employer, or to his health and safety representative, as soon as practicable but not later than the end of the particular shift during which the incident occurred, unless the circumstances were such that the reporting of the incident was not possible, in which case he shall report the incident*

8. General duties of employers to their employees

(1) Every employer shall provide and maintain, as far as is reasonably practicable, a working environment that is safe and without risk to the health of his employees.

(2) Without derogating from the generality of an employer's duty under subsection (1), the matters to which those duties refers include in particular -

- (a) the provisions and maintenance of systems of work, plant and machinery that as far as is reasonably practicable, safe and without risks to health;
- (b) taking such steps as may be reasonably practicable to eliminate or mitigate any hazard or potential hazard to the safety or health of employees, before resorting to personal protective equipment;
- (c) making arrangements for ensuring, as far as is reasonably practicable, the safety and absence of risks to health in connection with the production, processing, use, handling, storage or transport of articles or substances;
- (d) establishing, as far as is reasonably practicable, what hazards to the health or safety of persons are attached to any work which is performed, any article or substance which is produced, processed, used, handled, stored or transported and any plant or machinery which is used in his business, and he shall, as far as is reasonably practicable, further establish what precautionary measures should be taken with respect to such work, article, substance plant or

machinery in order to protect the health and safety of persons, and he shall provide the necessary means to apply such precautionary measures;

- (e) providing such information, instructions, training and supervision as may be necessary to ensure, as far as is reasonably practicable, the health and safety at work of his employees;
 - (f) as far as is reasonably practicable, not permitting any employee to do any work or to produce, process, use, handle, store or transport any article or substance or to operate any plant or machinery, unless the precautionary measures contemplated in paragraphs (b) and (d); or any other precautionary measures which may be prescribed, have been taken;
 - (g) taking all necessary measures to ensure that the requirements of this Act are complied with by every person in his employment or on premises under his control where plant or machinery is used;
 - (h) enforcing such measures as may be necessary in the interest of health and safety;
 - (i) ensuring that work is performed and that plant or machinery is used under the general supervision of a person trained to understand the hazards associated with it and who have the authority to ensure that precautionary measures taken by the employer are implemented; and
 - (j) causing all employees to be informed regarding the scope of their authority as contemplated in section 37 (1)(b).
-
- (a) ensure, as far as is reasonably practicable, that the substance is safe and without risks to health when properly used; and
 - (b) take such steps as may be necessary to ensure that information is available with regard to the use of the substance at work, the risks to health and safety associated with such substance, the conditions necessary to ensure that the substance will be safe and without risks to health when properly used, and procedures to be followed in case of an accident involving such subst

Activity: In short please summarize the two sections above?

<i>Duties of employers towards their employees</i>	<i>Duties of employees</i>

13. Duty to inform

Without derogating from any specific duty imposed on employers by this Act, every employer shall -

- (a) as far as is reasonably practicable, cause every employee to be made conversant with the hazards to his health and safety attached to any work he has to perform, any article or substance which he has to produce, process, use, handle, store or transport and any plant or machinery he is required or permitted to use, as well as with the precautionary measures which should be taken and observed with respect to those hazards;

- (b) inform health and safety representatives concerned beforehand of inspections, investigations or formal inquiries of which he has been notified by an inspector, and of any application for exemption made by him in terms of section 40 ; and
- (c) inform a health and safety representative as soon as reasonably practicable of the occurrence of an incident in the workplace or section of the workplace for which such representative has been designated.

4. The Health and Safety representative

There is a perception that the H&S representative is the person responsible for health and safety in a company. However that is not the case, as all company employees are responsible for the H&S, from the CEO to a low level employee. The intended function of the H&S representative is to provide the employer and employees with the assistance and information regarding occupational H&S matters.

Extract from the Act:

17. Health and safety representatives

(1) Subject to the provisions of subsection (2), every employer who has more than 20 employees in his employment at any workplace shall, within four months after the commencement of this Act or after commencing business, or from such time the number of employees exceeds 20, as the case may be, designate in writing for a specified period health and safety representatives for such workplace, or for different sections thereof.

(2) An employer and the representatives of his employees recognized by him or, where there are no such representatives, the employees shall consult in good faith regarding the arrangements and procedures for the nomination or election, period of office and subsequent designation of health and safety representatives in terms of subsection (1): Provided that if such consultation fails, the matter shall be referred for arbitration to a person mutually agreed upon, whose decision shall be final: Provided further that if the parties do not agree within 14 days on an arbitrator, the employer shall give notice to this effect in writing to the President of the Industrial Court, who shall in consultation with the chief inspector designate an arbitrator, whose decision shall be final.

[As amended by cl. 4 of G.N.R.2471 dd. 29/12/1993]

(3) Arbitration in terms of subsection (2) shall not be subject to the provisions of the Arbitration Act, 1965 (Act No. 42 of 1965), and a failure of the consultation contemplated in that subsection shall not be deemed to be a dispute in terms of the Labour Relations Act, 1956 (Act No. 28 of 1956): Provided that the Minister may prescribe the manner of arbitration and the remuneration of the arbitrator designated by the President of the Industrial Court.

[As amended by cl. 4 of G.N.R.2471 dd. 29/12/1993]

(4) Only those employees employed in a full-time capacity at a specific workplace and who are acquainted with conditions and activities at that workplace or section thereof, as the case may be, shall be eligible for designation as health and safety representatives for that workplace or section.

(5) The number of health and safety representatives for a workplace or section thereof shall in the case of shops and offices be at least one health and safety representative for every 100 employees or part thereof, and in the case of all other workplaces at least one health and safety representative for every 50 employees or part thereof: Provided that those employees performing work at a workplace other than where they ordinarily report for duty, shall be deemed to be working at the workplace where they so report for duty.

(6) If an inspector is of the opinion that the number of health and safety representatives for any workplace or section thereof, including a workplace or section with 20 or fewer employees, is inadequate, he may by notice in writing direct the employer to designate such number of the employees as the inspector may determine as health and safety representatives for that workplace or section thereof in accordance with the arrangements and procedures referred to in subsection (2).

(7) All activities in connection with the designation, functions and training of health and safety representatives shall be performed during ordinary working hours, and any time reasonably spent by any employee in this regard shall for all purposes be deemed to be time spent by him in the carrying out of his duties as an employee.

18. Functions of health and safety representatives

(1) A health and safety representative may perform the following functions in respect of the workplace or

section of the workplace for which he has been designated, namely -

- (a) review the effectiveness of health and safety measures;
- (b) identify potential hazards and potential major incidents at the workplace;
- (c) in collaboration with his employer, examine the causes of incidents at the workplace;
- (d) investigate complaints by any employee relating to that employee's health and safety at work;
- (e) make representations to the employer or a health and safety committee on matters arising from paragraphs (a), (b), (c), or (d), or where such representations are unsuccessful, to an inspector;
- (f) make representations to the employer on general matters affecting the health or safety of the employees at the workplace;
- (g) inspect the workplace, including any article, substance, plant, machinery or health and safety equipment at that workplace with a view to the health and safety of employees, at such intervals as may be agreed upon with the employer: Provided that the health and safety representative shall give reasonable notice of his intention to carry out such an inspection to the employer, who may be present during the inspection;
- (h) participate in consultations with inspectors at the workplace and accompany inspectors on inspections of the workplace;
- (i) receive information from inspectors as contemplated in section 36 of this Act; and
- (j) in his capacity as health and safety representative attend meetings of the health and safety committees of which he is a member in connection with any of the above functions.

(2) A health and safety representative shall, in respect of the workplace or section of the workplace for which he has been designated be entitled to -

- (a) visit the site of an incident at all reasonable times and attend any inspection in loco;
- (b) attend any investigation or formal inquiry held in terms of this Act;
- (c) in so far as it is reasonably necessary for performing his functions, inspect any document which the employer is required to keep in terms of this Act;
- (d) accompany an inspector on any inspection;
- (e) with the approval of the employer (which approval shall not be unreasonably withheld), be accompanied by a technical adviser, on any inspection; and
- (f) participate in any internal health or safety audits.

[As amended by cl. 5 of G.N.R.2471 dd. 29/12/1993]

(3) An employer shall provide such facilities, assistance and training as a health and safety representative may reasonably require and as have been agreed upon for the carrying out of his functions.

(4) A health and safety representative shall not incur any civil liability by reason of the fact only that he failed to do anything which he may do or is required to do in terms of this Act.

Health and Safety representative Appointment Letter

The Act stipulates that the employer is required to designate H&S representatives in writing for a specific period for a workplace or different sections thereof (appointment is normally for a two year period). Appointment letter must be placed on file.

Functions of H&S representative

The following functions can be classified as the "core" functions of the H&S representative;

- Perform H&S inspections of the workplace
- Assist with the incident and accident investigations of the workplace
- Attend 100% of the H&S committee meetings during the appointed period
- Represent the employees H&S interests

5. H&S Representative inspections

The H&S representative can perform either monthly or quarterly inspections of the workplace, but monthly inspections are preferred. All inspection sheets or reports must be presented or submitted at the H&S

The amount of employer representatives may never exceed the amount of employee representatives in this committee. H&S representatives automatically become members of the H&S committee once appointed as H&S representative in writing by the company.

Committee meeting should be held at least once every 3 months. The entire team must attend and contribute. Co-opted visitors attendees may be invited to attend meetings. The chairperson of the meeting will be nominated by the committee during the first meeting.

The H&S committee forms the backbone and strength of a successful H&S Structure. It is therefore important that all members of the committee are fully prepared to put in the necessary time and effort required to ensure the success of the committee.

Extract from the act:

19. Health and safety committees

(1) An employer shall in respect of each workplace where two or more health and safety representatives have been designated, establish one or more health and safety committees and, at every meeting of such a committee as contemplated in subsection (4), consult with the committee with a view to initiating, developing, promoting, maintaining and reviewing measures to ensure the health and safety at work of his employees at work.

(2) A health and safety committee shall consist of such number of members as the employer may from time to time determine : Provided that -

- (a) if one health and safety committee has been established in respect of a workplace, all the health and safety representatives for that workplace shall be members of the committee;
- (b) if two or more health and safety committees have been established in respect of a workplace, each health and safety representative for that workplace shall be member of at least one of those committees; and
- (c) the number of persons nominated by an employer on any health and safety committee established in terms of this section shall not exceed the number of health and safety representatives on that committee.

(3) The persons nominated by an employer on a health and safety committee shall be designated in writing by the employer for such a period as may be determined by him, while the health and safety representatives shall be members of the committee for the period of their designation in terms of section 17 (1).

(4) A health and safety committee shall hold meetings as often as may be necessary, but at least once every three months at a time and place determined by the committee : Provided that an inspector may by notice in writing direct the members of a health and safety committee to hold a meeting at a time and place determined by him; Provided further that, if more than 10 per cent of the employees at a specific workplace has handed a written request to an inspector, the inspector may by written notice direct that such a meeting be held.

(5) The procedure at meetings of a health and safety committee shall be determined by the committee.

(6) (a) A health and safety committee may co-opt one or more persons by reason of his or their particular knowledge of health or safety matters as an advisory member or as advisory members of the committee.

(b) An advisory member shall not be entitled to vote on any matter before the committee.

(7) If an inspector is of the opinion that the number of health and safety committees established for any particular workplace is inadequate, he may in writing direct the employer to establish for such workplace such number of health and safety committees as the inspector may determine.

20. Functions of health and safety committees

(1) A health and safety committee -

- (a) may make recommendations to the employer or, where the recommendation fail to resolve the matter, to an inspector regarding any matter affecting the health or safety of persons at the workplace or section of the workplace for which it has been established;
- (b) shall discuss any incident at the workplace or section of the workplace in which or in consequence of which any person was injured, became ill or died; and may in writing report on the incident to an inspector; and
- (c) shall perform such other functions as may be prescribed.

- (2) A health and safety committee shall keep record of each recommendation made to an employer in terms of subsection (1)(a) and of any report made to an inspector in terms of subsection (1)(b).
- (3) A health and safety committee or a member thereof shall not incur any civil liability by reason of the fact only that he failed to do anything which he may do or is required to do in terms of this Act.
- (4) An employer shall take the prescribed steps to ensure that a health and safety committee complies with the provisions of section 19 (4) and performs the duties assigned to it by subsection (1) and (2).

8. Additional information

26. Victimization forbidden

- (1) No employer shall dismiss an employee, or reduce the rate of his remuneration, or alter the terms of conditions of his employment to terms or conditions less favorable to him, or alter his position relatively to other employees employed by that employer to his disadvantage, by reason of the fact, or because he suspects or believes, whether or not the suspicion or belief is justified or correct, that employee has given information to the Minister or to any other person charged with the administration of a provision of this Act which in terms of this Act he is required to give or which relates to the terms, conditions or circumstances of his employment or to those of any other employee of his employer, or has complied with a lawful prohibition, requirement, request or direction of an inspector, or has given evidence before a court of law or the industrial court, or has done anything which he may or is required to do in terms of this Act or has refused to do anything which he is prohibited from doing in terms of this Act.
- (2) No employer shall unfairly dismiss an employee, or reduce the rate of his remuneration, or alter the terms or conditions of his employment to terms or conditions less favorable to him, or alter his position relative to other employees employed by that employer to his disadvantage, by reason of the information that the employer has obtained regarding the results contemplated in section 12 (2) or by a reason of a report made to the employer in terms of section 25

Some of the Symbolic Signs for Health and Safety

SITE SAFETY



Construction work in progress
Parents are advised to warn
children of the dangers of
entering this site



Danger
Demolition work
in progress



No admittance
for unauthorised
personnel



Use ear
protectors



This is a
hard hat area



High visibility
jackets
must be worn



Protective
footwear
must be worn



Warning
Look out for
overhead loads



The Health and Safety Team

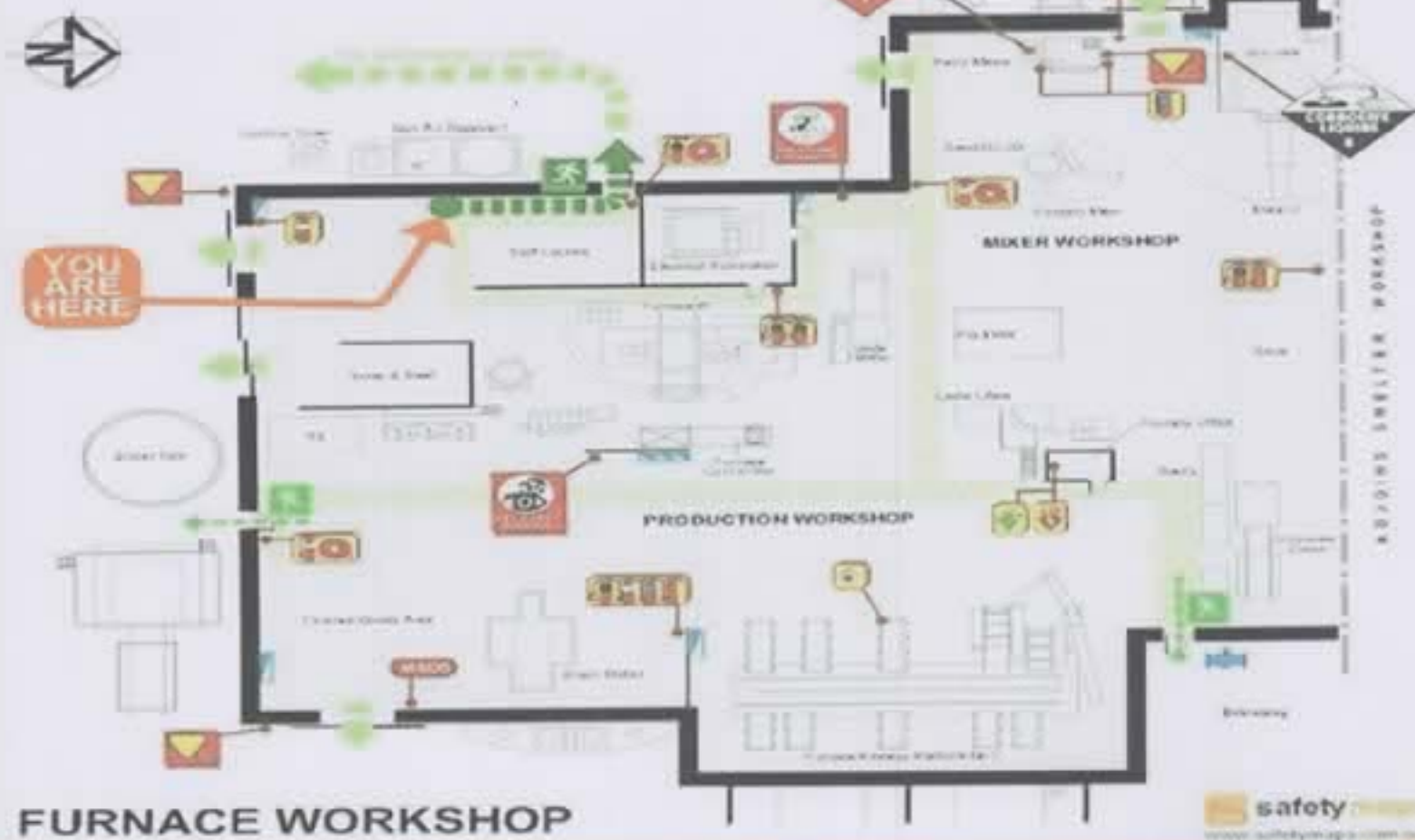
The names of the safety team member should be clear and visible within your working environment.

- H&S Representative
- Evacuation leader
- First Aider
- Fire Warden

EVACUATION DIAGRAM

BDP MINING

42 Mineral Road, BOURKE SA 5084



SITE MAP / ASSEMBLY AREA



LEGEND

- | | |
|-------------------|-----------------------------|
| FIRE EXTINGUISHER | FIRST AID KIT |
| FIRE EXTINGUISHER | ELECTRICAL BOARD |
| FIRE EXTINGUISHER | GAS STOP VALVE |
| FIRE EXTINGUISHER | MATERIAL SAFETY DATA SHEETS |
| FIRE HOSE REEL | PRIMARY EGRESS ROUTE |
| ISOLATION SWITCH | SECONDARY EGRESS ROUTE |
| DEFIBRILLATOR | |

**FOR ALL EMERGENCIES
DIAL 9999**